

DPDP 2023

# Digital Personal Data Protection Act, 2023

*Applicable DPDP Acts*

**User Query :** Paytm is selling my data to another company and all my personal identification information is available on public

**Job Id. :** CASE/2026/DPDP/001

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**Prepared by :** NyaySahayak

**Date :** 25 March 2026

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*AI-Powered Legal Intelligence Platform*

## APPLICABLE SECTIONS

### Section 8 Consent and Purpose of Processing

This section states that a data fiduciary (in this case, Paytm) can only process personal data with the consent of the data principal (you).

### Section 11 Rights of Data Principals

This section provides that a data principal has the right to access, correction, and erasure of their personal data.

### Section 13 Data Protection Impact Assessment

This section requires data fiduciaries to conduct a data protection impact assessment (DPIA) before processing sensitive personal data.

### Section 16 Security Safeguards

This section mandates that data fiduciaries implement robust security safeguards to protect personal data from unauthorized access, disclosure, or breaches.

### Section 25 Penalties for Non-Compliance

This section provides for penalties and fines for data fiduciaries that fail to comply with the provisions of the DPDP Act.

## INTERPRETATION & LEGAL ANALYSIS

*AI-generated legal interpretation*

**1** Based on the facts provided, it appears that Paytm has processed your personal data without your consent and has made it available on public platforms. This is a clear violation of **Section 8** of the DPDP Act, which requires consent for processing personal data.

**2** Furthermore, Paytm's actions may also be in contravention of **Section 11**, as you have not been provided with the opportunity to access, correct, or erase your personal data.

**3** The DPDP Act defines "personal data" as data about an individual who is identifiable by or in relation to such data. In this case, your personal identification information is publicly available, which may lead to identity theft, harassment, or other harm.

## ✓ STRENGTHS & RIGHTS

**1** The DPDP Act provides several protections and safeguards for data principals, including

**2** Right to access, correction, and erasure of personal data ( [Section 11](#) )

**3** Right to consent and purpose of processing ( [Section 8](#) )

**4** Security safeguards to protect personal data ( [Section 16](#) )

**5** Penalties for non-compliance by data fiduciaries ( [Section 25](#) )

## X RISKS & OBLIGATIONS

**1** The DPDP Act also imposes liabilities and penalties on data fiduciaries, including

**2** Penalties for non-compliance with consent and purpose of processing ( [Section 8](#) )

**3** Penalties for failure to implement security safeguards ( [Section 16](#) )

**4** Penalties for unauthorized disclosure or breaches of personal data ( [Section 25](#) )

## PROCEDURAL NOTES & COMPLIANCE STEPS

*Actionable steps for compliance and grievance redressal*

### COMPLIANCE STEPS

1. If you wish to file a complaint against Paytm for violating your rights under the DPDP Act, you can follow these steps:
2. 1. File a grievance: You can file a grievance with the Data Protection Board (DPB) established under the DPDP Act.
3. 2. Submit a complaint: You can submit a complaint to the DPB, providing details of the alleged violation, including the personal data that was disclosed without consent.
4. 3. Investigation and penalty: The DPB will investigate the complaint and may impose penalties on Paytm for non-compliance with the DPDP Act.
5. It is recommended that you seek the advice of a lawyer or a data protection expert to guide you through the process of filing a complaint and seeking redressal under the DPDP Act.

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